Project 3: IRAC Short Memorandum

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LGST 201: Legal Writing

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IRAC Short Memorandum

TO: Alice Chong, Esq.

FROM: Victoria Lee, Paralegal

RE: Mary Hastings Claim Against Gilford Pines Condominium Association

DATE: 2/19/2025

Introduction:

This short statutory memorandum will analyze and determine whether, under Maryland Courts and Judicial Proceedings Section 5-101, Mary Hastings is barred from filing a lawsuit and pursuing her civil action against Gilford Pines Condominium Association based on the additional facts added.

Issue

Whether, under Maryland law, Mary Hastings is time-barred from pursuing her complaint against Gilford Pines Condominium Association by the Maryland statute of limitations?

Rule

Under Md. Code Ann., Cts. & Jud. Proc. § 5-101 (West, Westlaw through all legislation from the 2024 Regular Session of the General Assembly), a civil action in Maryland at law shall be filed within three years from the date it accrues unless another provision of the Code provides a different period of time within which an action shall be commenced.

Application

Here, Mary Hastings was walking her dog at the local park owned by the Gilford Pines Condominium Association on January 2, 2018, when she slipped on black ice and broke her right arm. Even though the sidewalks had been cleared of snow a few days prior, there were no witnesses due to the empty park and Hastings sought medical treatment at Gilford County Hospital to treat her injuries with an x-ray and casting. Afterward, Hastings reported the incident to the Gilford Pines Condominium Association and contacted Chong & Associates for legal advice on June 5, 2021. Under the Maryland Statue of Section 5-101, a civil action at law should be filed within three years from the date the incident occurred, which means Hastings must file the lawsuit anywhere between January 2, 2018, and January 2, 2021. However, Hastings did not seek legal advice from Chong & Associates until June 5, 2021, three years and 3 days after the incident occurred, which is past the three-year statute of limitations. Since Hastings only filled out an incident report with the Gilford Pines Condominium Association and did not file a lawsuit

within three years, she will be barred from pursuing legal action against the Association under the statute of limitations unless there are exceptions or tolling provisions that apply to her case.

Conclusion

In conclusion, Mary Hastings is time-barred from pursuing her complaint against the Gilford Pines Condominium Association under Md. Code Ann., Cts. & Jud. Proc. § 5-101 of limitations. Since she sought legal advice on June 5, 2021, after the three-year period expired on June 2, 2021, her claim is beyond the allowed time frame, and she is not eligible to file a lawsuit unless applicable exceptions apply. Therefore, Mary Hastings is time-barred from pursuing her complaint against the Gilford Pines Condominium Association based on the Md. Code Ann., Cts. & Jud. Proc. § 5-101 (West, Westlaw through all legislation from the 2024 Regular Session of the General Assembly).

References

Hastings. UMGC. [UMGC]. n.d. https://leocontent.umgc.edu/content/umuc/tus/lgst/lgst201/2252/course-resources.html?ou=1275910

Md. Code Ann., Cts. & Jud. Proc. § 5-101 (West, Westlaw through all legislation from the 2024 Regular Session of the General Assembly)